

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 08/10/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09>

Meeting ID: 161 108 5023
Passcode: 869677

Courtroom Clerk's session

1. 10:00 AM CASE NUMBER: C23-00559
CASE NAME: PACIFIC HIGHWAY RENTALS, LLC VS. BROOKLYN SWEEPS, INC.
2 DAYS
FILED BY:
TENTATIVE RULING:

A Notice of Conditional Settlement was filed on July 2, 2026. The trial date is VACATED. The parties are directed to file a dismissal with a reservation of jurisdiction pursuant to Code of Civil Procedure section 664.6.

2. 10:00 AM CASE NUMBER: N26-0539
CASE NAME: AARON BAILEY, JR. VS. BENARD ROBINSON
FILED BY:
TENTATIVE RULING:

Parties to Appear.

3. 9:00 AM CASE NUMBER: C23-01267

CASE NAME: L. J. VS. CONTRA COSTA COUNTY

JUDGMENT ON THE PLEADINGS

FILED BY: CONTRA COSTA COUNTY

TENTATIVE RULING:

Before the Court is Defendant County of Contra Costa's Motion for Judgment on the Pleadings ("MJOP"). The Complaint alleges a single cause of action for negligence based on Government Code sections 815.2, 815.4, and 815.6.

Factual Allegations

This matter pertains to allegations of child abuse suffered by Plaintiff while in the foster care system in Contra Costa County. In approximately 1987, Plaintiff was placed in the foster home of Mr. and Mrs. Boutte by Defendants. (¶ 24.) From approximately 1993 to 1998, when Plaintiff was approximately six to eleven years old, Plaintiff was repeatedly sexually abused by Mr. Boutte. (¶ 25-26.) During that time, Plaintiff disclosed the abuse to two different social workers at different times. (¶ 27.) The social workers were agents and/or employees of Defendants. (*Ibid.*) Despite the complaints, no action was taken and no investigation was completed. (*Ibid.*)

In approximately 1999, Plaintiff was placed in the Stars Adolescent Center group foster home in San Leandro, California ("Facility"). (¶ 28.) From approximately 1999-2002, Plaintiff was sexually abused by a male staff member at the Facility. (¶ 29-30.) During this time, several nurses employed by the Facility allowed, observed, participated in, and/or facilitated the abuse. (¶ 31.) Again, no action was taken and no investigation into the abuse was conducted. (*Ibid.*)

Plaintiff generally alleges that at all relevant times Defendants knew or should have known about the abuse and/or the possibility of abuse from the perpetrators. (¶¶ 34-46.)

Plaintiff filed the initial Complaint on May 26, 2023, alleging a single cause of action against the County for negligence. The County filed an Answer on October 16, 2023. The County then filed the instant motion for judgment on the pleadings on May 27, 2026.

Legal Standard

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) Therefore, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061.)

In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action. (*Fire Ins. Exchange v. Sup. Ct.*